

You are here: *Driver & Event Management > Credential Issuance > [Commercial \(CDL\) Issuance](#) > CDL Downgrades*

CDL Downgrades

Voluntary Downgrade

An applicant, whose Commercial Driver License (CDL) driving privilege has been disqualified, suspended, or revoked, can choose to voluntarily downgrade from a CDL to a class D or M license.

Downgrading from a CDL to a lower class license will be processed as an original. An age appropriate application fee will be charged.



If a customer is requesting a downgrade from a CDL to a Class D license they may choose retain a motorcycle endorsement at no charge.

If the CDL applicant has any outstanding withdrawal actions that would prevent the issuance of a Class D or M license (i.e., outstanding tickets, TSS, DUI, etc.), the applicant must reinstate at the time of the downgrade, and pay any reinstatement fees. If the applicant is coming in from out-of-state with a CDL, all endorsements must be entered from the prior CDL.

An applicant may choose the downgrade because:

- They have a CDL medical suspension or revocation
- MRP did not receive a Examination Report Form ([MCSA-5875](#) long form)
- They have no intention of driving a CDL vehicle again

DACH Downgrade

A driver with a drug and alcohol program violation, per the Federal Motor Carrier Safety Administration (FMCSA) Drug and Alcohol Clearinghouse (DACH), is prohibited from performing safety-sensitive functions, including operating commercial vehicles (CMVs), for any Department of Transportation (DOT)-regulated employer until the Return to Duty process is complete.

Therefore, beginning November 12, 2024, the Division shall verify through the FMCSA DACH before issuing, upgrading, renewing, or transferring a CDL or CLP. This verification is performed automatically in MAX while processing the Credential Issuance service.

▶ Example of DACH Alert - Prohibited

If the Clearinghouse reports a Prohibited status of the CDL/CLP driver's privileges, a required downgrade will be initiated for the CDL/CLP privileges only. The Withdrawal for the privilege downgrade will go into effect on the 30th day from receipt of the Prohibited status from the Clearinghouse.

The driver is required to complete a Return to Duty process with the Clearinghouse who will report to the Division a 'Not Prohibited' status when complete.



The CDL/CLP drivers will be able to continue to drive on their current credential after becoming commercially prohibited **only for their personal vehicles**.

For additional information:

- [FMCSA Drug & Alcohol Testing Regulations](#) brochure
- [DACH](#) website

Completing Return to Duty

The driver has 12 months to complete the Return to Duty process with the Clearinghouse or a Withdrawal will be recorded on the Driver Record in MAX.

If more than 12 months has passed, the applicant must reapply by still completing the Return to Duty process and for MVD they will be required to pay reinstatement fees and by completing any required tests (knowledge test scores are valid for 12 months).

Prohibited Status Reported Incorrectly

If a Prohibited status is reported incorrectly to a CDL/CLP driver, FMCSA will send an updated status to the Division as an Erroneous reporting. Upon receipt of an Erroneous reporting from FMCSA, the Division will rescind all associated action immediately.



If a Prohibited status comes back and the applicant states they should be clear, see your upline approver, as they will need to contact MVD Support Services.

Downgrade due to Authorized Presence

For a Non-Domiciled CLP or CDL, if the SAVE final response does not confirm the I-94 or I-94A category of H-2A, H-2B, or E-2, the Division must not issue (including duplicates), transfer, renew, or upgrade a Non-Domicile CLP or CDL, a required downgrade must be initiated for the CLP/CDL privileges only.

For additional information, see the [Commercial Credential](#) topic > [CDL Documentation Requirements](#) section.

Processing a Downgrade

- Use the **Credential Issuance service**
- On Credential tab, *select* **Class D**

- If applicant has a Motorcycle endorsement, *select* **Class M** under Non-Commercial
- If applicant has corrective lenses, the restriction will automatically transfer
 - Though it should automatically transfer, verify when processing
- *Continue process* as normal

HELPFUL LINKS

» [MVD / DMV Public Website](#) »

» [Customer Portal](#) »

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